



DECISION

POS/57/2025/KC

Complaint No. :

Name and address
of the complainant :

Mst. Saima Zakir,
R/o House No. H/1-2, C-Area, Liaquatabad, Karachi.

Name of the Agency
complained against :

Sindh Building Control Authority (SBCA)

Name & Designation of
Investigating Officer :

Mr. Iqbal Nafees Khan
Regional Director, Karachi Central.

Subject :-

**INORDINATE DELAY IN APPROVAL OF BUILDING
PLAN ON COMPLAINANT'S PLOT**

COMPLAINT

Mst. Saima Zakir lodged a complaint on 22.04.2025 stating that she was allotted Plot No. R-19, Sector 15-A/5, measuring 120 square yards, in Sadaf Cooperative Housing Society (SCHS) Ltd., Scheme-33, Gulzar-e-Hijri, Karachi, on 05.03.2024 vide Membership No. 2934. Possession of the said plot was handed over to her on 15.03.2025 and remains with her.

2. She further stated that while processing documents for construction on the said plot, she was informed vide letter dated 21.02.2025 issued by the Assistant Director, Single Window Facility (SWF), Sindh Building Control Authority (SBCA), that the plot had been kept in abeyance in the layout plan due to the existing boundary of a graveyard in Sector 15-A, Scheme-33, Gulzar-e-Hijri, Karachi. She complained that despite repeated requests, the map (approved building plan) of the plot has not been provided to her. She has, therefore, requested the intervention of this Institution for resolution of the matter.

PROCEEDINGS

3. The complaint was examined and admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended in 2020) by condoning the delay. Thereafter, the matter was referred to the Agency for submission of its report.
4. In response, Assistant Director, Single Window Facility (SWF), SBCA vide letter dated 09.05.2025 reiterated that as per Layout Plan issued by Sindh Master Plan Authority (SMPA), the said plot has been marked as "**Kept in Abeyance**". Therefore, the building plan on this plot cannot be approved.
5. Deputy Director, Sindh Master Plan Authority (SMPA) vide letter dated 08.05.2025 submitted that the said plot exists in approved layout Plan (No. Deh/C-11/69/UD-1084/3047, dated 21.10.1986). However, it has been kept in Abeyance and clarification from the Deputy Commissioner East, Karachi is awaited.
6. The Additional Commissioner-I, District East, Karachi vide his letter dated 08.07.2025 forwarded a report dated 02.07.2025 of Mukhtiarkar, Gulzar-e-Hijri, Scheme-33, Karachi East. The Mukhtiarkar reported, inter alia, that Assistant City Survey Officer, Karachi East, in the year 1983, had clearly directed the Sadaf Cooperative Housing Society (SCHS) should not allot 38 Plots of "R-Category" situated on Government land, as these were to be regularized as excess land. Despite these directions, Plot No. R-19 was allotted to the complainant Mst. Saima Zakir, by the management of the Society in 2002.

7. Conversely, the Secretary, Sadaf CHS, Karachi vide letter dated 01.10.2025 submitted that as per Society's record the plot in question (R-19) is free from all dues and a No Objection Certificate (NOC) for construction has already been issued in favour of the Complainant. In support of this position, he furnished a copy of letter dated 08.09.1994 issued by Deputy Director (UD), Master Plan Department, KDA wherein it has been stated that:-
- "At the time of approval of the layout plan for Sector 15-A, a piece of land measuring approximately 1.24 acres, which had not been acquired, was kept in abeyance due to a dispute with the existing graveyard".
 - "The land of the existing graveyard has since been jointly demarcated by the Surveyor, Scheme-33, under the Deputy Commissioner (East), and as per such demarcation, only about 0.24 acre of the Society's land is affected".
8. Pursuant to persistent follow ups, including issuance of notices/reminders, the Deputy Director (UD-II), Sindh Master Plan Department (SMPA) vide letter dated 01.04.2026 submitted that the Revised Layout Plan of Sector 15-A, measuring 45.22 Acres, for Sadaf Cooperative Housing Society (SCHC) Ltd. Scheme-33, Gulzar-e-Hijri, Karachi, has been approved from Town Planning Point of view vide letter dated 24.12.2025. He also furnished copies of the approval and Revised Layout Plan.
9. The complainant Mst. Saima Zakir vide letter dated 02.04.2026 stated that upon approval of Revised Layout Plan of Sector 15-A, Sadaf CHS, by Sindh Master Plan Authority (SMPA) the condition requiring her plot to be kept in abeyance has been removed. She requested that Single Window Facility (SWF), SBCA, be directed to approve and issue her building plan at the earliest.
10. During the hearing held on 02.04.2026, the Deputy Director SMPA stated that his department has no objection to the grant of an NOC by SBCA for the approval of Building Plan in respect of the plot in question (R-19).

FINDING

11. I have examined the case and correspondence and observed that the Revised Layout Plan reflects that the complainant's plot (R-19) falls within the boundry wall of Sadaf Cooperative Housing Society and it is not included in the pots to be kept in Abeyance. Therefore, the objection of SBCA, to approve the building plan on Complainant's plot has been removed.

DECISION

12. In view of the foregoing, I, in exercise of powers conferred under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended), direct the:-
- Deputy Director, Sindh Master Plan Authority (SMPA) to issue No Objection Certificate (NOC) through Portal for the approval of Building Plan in respect of complainant's plot in question (R-19).
 - The Director, Single Window Facility (SWF), SBCA to approve the Building Plan after fulfillment of all legal/codal requirements.
13. Compliance should be reported to this office inside **45** days hereof without fail.

Given under my hand and seal of this office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz (PAS)
OMBUDSMAN SINDH
 Karachi, the 30th April, 2026,